

Court No. - 29

Case :- WRIT - C No. - 18939 of 2010

Petitioner :- M/S. Silvertown Paper Ltd. & Anr.

Respondent :- Paschimanchal Vidyut Vitran Nigam Limited & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kr. Shukla

Hon'ble Sunil Ambwani,J.

Hon'ble Kashi Nath Pandey,J.

Heard Shri Mayank Agrawal learned counsel for the petitioner. Shri Pankaj Kumar Shukla appears for U.P. Power Corporation Ltd.

In this writ petition, the petitioner, a consumer of 130 KVA Independent Feeder connection from Sub Centre Bhopa Road, Muzaffarnagar, alleges that due to widening of the road, the electric lines feeding his industry, have to be shifted from the centre of the road to the sides. The UP Power Corporation Ltd. is shifting the line, but that the placement of the poles would show that the electric wires have to pass through dense foliage of the trees. It is alleged that the construction of the new line is not being supervised in accordance with Para 4.6 (e) and (ii) of the Electricity Supply Code 2005, for which the Public Works Department had deposited Rs. 20 lacs with the Corporation.

Shri Mayank Agrawal states that if the line is laid from within the branches of the trees, there will be hindrance in the continuous power supply. A copy of the application has also been sent to the Forest Department.

The electricity lines are still being shifted and relaid on the sides of the widened road. The UP Power Corporation Ltd may be under obligation to provide uninterrupted power supply, but that will not give a cause of action to the petitioner to approach the High Court to issue necessary directions at this stage. The shifting of the electricity line as a consequence of the widening of the road and the assurance of the quality of work to provide uninterrupted electric supply is a purely administrative matter.

We do not find that there has been any such delay or negligence in relocating the electricity lines so far to issue any directions. The petitioner has not shown any genuine and apparent apprehension to interfere in the matter, at this stage.

The writ petition is **dismissed**.

Order Date :- 11.5.2010 RKP